

25STCV16636 25STCV16636

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-31

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Case Number: 25STCV16636 Hearing Date: July 31, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

LYDA

P. SUAREZ

vs.

BAGCRAFTPAPERCON

III, LLC

Case No.: 25STCV16636

Hearing

Date: August 3, 2026

Plaintiffs'

motion for final approval of the PAGA Settlement is GRANTED.

On

6/9/2025, Plaintiff Lyda P. Surez (Plaintiff), individually, and on behalf of

all others similarly situated, filed suit against Pomona Community Health Center (Defendant).

Now,
Plaintiff moves for final approval of the PAGA settlement.

The
motion is unopposed.

Discussion

The basic
terms of the PAGA Settlement Agreement (Settlement Agreement) provide for the following:

-
Gross Settlement Amount: \$125,000

-
Fees Award: \$41,666.67

-
Costs Award: \$14,057.40

-
Payment to Aggrieved Employees: \$16,322.73

-
Payment to LWDA: \$48,968.20

-
Settlement Administration Costs: \$3,985.00

To determine whether a settlement is fair,
adequate and reasonable, the court must independently and objectively analyze
the evidence and circumstances before it in order to determine whether the
settlement is in the best interests of those whose claims will be
extinguished. (Kullar v.
Foot Locker Retail, Inc., (2008) 168
Cal.App.4th 116, 130.) A non-exhaustive list of factors that the trial

court should consider in evaluating the reasonableness of a class action settlement agreement includes the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. (Id. at 129.)

Here, the parties engaged in informal discovery, participated in mediation, and the Settlement Amount reflects the competing risks associated with litigating these claims. Plaintiff's motion thoroughly sets forth an analysis of the competing risks here, to show that considerable thought and investigation was put into the decision to settle the claims. (See Messrelian Decl.)

The Court also finds the requested litigation reimbursement fees and costs, as well as the settlement administration costs, to be reasonable. (See *Laffitte v. Robert Half Intern. Inc.* (Cal. 2016) 205 Cal.Rptr.3d 555, 573.)

Based on the foregoing, Plaintiff's motion for approval of the PAGA settlement is granted.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.